

TENTATIVE RULINGS

**DEPT. CX103
(657-622-5303)**

**Judge David A. Hoffer
July 13, 2026**

These are the Court's tentative rulings. They may become orders if the parties do not appear at the hearing. The Court also might make a different order at the hearing. (*Lewis v. Fletcher Jones Motor Cars, Inc.* (2012) 205 Cal.App.4th 436, 442, fn. 1.)

If a party intends to submit on the Court's tentative ruling, please call the Court Clerk to inform the court. If both parties submit, the tentative ruling will then become the order of the Court.

APPEARANCES: Department CX103 conducts non-evidentiary proceedings, such as law and motion, remotely by Zoom videoconference. All counsel and self-represented parties appearing for such hearings should check-in online through the Court's civil video appearance website at <https://www.occourts.org/media-relations/civil.html> prior to the commencement of their hearing. Once the online check-in is completed, participants will be prompted to join the courtroom's Zoom hearing session. Check-in instructions and an instructional video are available on the court's website. All remote video participants shall comply with the Court's "Appearance Procedures and Information--Civil Unlimited and Complex" and "Guidelines for Remote Appearances" also posted online at <https://www.occourts.org/media-relations/aci.html>. A party choosing to appear in person can do so by appearing in the courtroom on the date/time of the hearing.

Court Reporters: Parties must provide their own remote court reporters (unless they have a fee waiver). Parties must comply with the Court's policy on the use of privately retained court reporters which can be found at:

- Civil Court Reporter Pooling; and
- Court Reporter Interpreter Services

THE PARTIES ARE PROHIBITED BY RULE OF COURT AND LOCAL RULE FROM PHOTOGRAPHING, FILMING, RECORDING, OR BROADCASTING THIS COURT SESSION.

#	Case Name	
1	30-2021-01180704 Warner vs. The Dot	The tentative ruling is to continue Plaintiff Marisela Dayan Warner's ("Plaintiff") Motion for Preliminary Approval of Class Action and PAGA Settlement to November 9, 2026 at 1:30 p.m. Counsel must file supplemental papers addressing the court's concerns (not fully revised papers that would have to be

		reread) no later than two weeks before the next hearing date. Counsel must submit an amendment to the settlement agreement rather than any amended settlement agreement. Counsel also must provide a red-lined version of any revised papers. Counsel also should provide the court with an explanation of how the pending issues were resolved with references to any corrections to the settlement agreement and the class notice, rather than with a supplemental declaration or brief that simply asserts the issues have been resolved. The settlement includes the settlement of PAGA claims but there is currently no PAGA claim in this action. The settlement states “Plaintiff intends to file a First Amended Complaint in the Class Action adding in the single cause of action from the PAGA Action. (Settlement ¶ 2.3.) However, no amended complaint has been filed. The parties have not provided the estimated number of aggrieved employees included in this settlement. The court disallows the attorney costs amount claimed for postage, copies, scans, and faxes because the court considers that cost item to be properly part of attorney overhead, so those cost items should be excluded from the attorney costs’ request for the final approval motion. The motion fails to provide the class members’ and aggrieved employees’ estimated individual recovery under the proposed settlement, including the estimated high, low and average payments to be paid to class members and aggrieved employees. The average payment must be provided for preliminary approval, but if the high and low estimated payments are not available at this time, they must be provided in the motion for final approval. The settlement agreement and class notice are inconsistent as to who will resolve workweek dispute. The settlement agreement states: “While the Administrator and the parties will attempt to resolve any such dispute, the Court ultimately will decide any unresolved dispute.” (Settlement ¶ 7.8.4.) In Section 4(c) on page 7 of the class notice regarding workweek challenges, the notice erroneously states: “The Administrator’s decision is final. You can’t appeal or otherwise challenge its final decision.” The documents should reflect instead that, while the Administrator and the parties will attempt to resolve
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		any such dispute, the court ultimately will decide any unresolved dispute. The request for exclusion form must be referenced in the class notice in every section that discusses opting out/requesting exclusion so that class members are aware that it should be used to request exclusion. In addition, the request for exclusion form should make it clear that aggrieved employees cannot opt out of the PAGA portion of the settlement. Class members and aggrieved employees may object to the allocation of the settlement to PAGA penalties. Thus, on the first row, left column of the table on page 3 of the class notice, the phrase “Participating Class Members Can Object to the Class Settlement but not the PAGA Settlement” should be amended to state “Participating Class Members Can Object to the Class Settlement.” In Section 1 on page 3 of the class notice, the phrase “rest breaks” in the description of this action should be removed as that is not a claim in the Complaint or PAGA notice. Counsel should propose a realistic Final Approval Hearing date, bearing in mind that all papers in support of the Final Approval Hearing, including detailed hourly breakdowns of plaintiff’s attorneys to support a lodestar cross-check, detailed plaintiff attorney cost breakdowns, an Administrator declaration and invoice, and plaintiff’s declaration to support the enhancement request must be filed at least 16 calendar days before the Final Approval Hearing date to provide enough time for court review, and must be served in compliance with CCP notice of motion requirements. Plaintiff is ordered to give notice of this ruling to the LWDA and Defendants.
2	30-2024-01405179 Miranda vs. Cleanroom Tecs, Inc.	Plaintiff Pastor E. Miranda’s (“Plaintiff”) Motion for Preliminary Approval of Class Action and PAGA Settlement is GRANTED. A Final Approval Hearing is set for December 14, 2026 at 1:30 p.m. All papers in support of the Final Approval Hearing, including detailed hourly breakdowns of plaintiff’s attorneys to support a lodestar cross-check, detailed plaintiff attorney cost breakdowns, an Administrator declaration and invoice,